



File No.: EXP202206258

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Mr. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated March 14, 2023, and based on the following

FACTS

FIRST: On March 14, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202206258, by virtue of which Mr. A.A.A., with NIF ***NIF.1, was imposed a fine of 300 euros (THREE HUNDRED euros) for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR. This resolution, which was notified to the appellant on March 27, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00487/2022, the following was recorded:

FIRST: The complainant states that he is a neighbor of a house adjacent to the house of the respondent and that the latter has installed, on the façade of the first floor of his house, on a terrace, a video surveillance camera that, due to its location and orientation, is capable of capturing both the public road that runs alongside both houses and the complainant's house, with the camera linked to a motion detection alarm system that is activated both when passing by the public road next to the respondent's house and when accessing the complainant's own house. He provides images of the camera's location and videos showing the activation of the alarm system upon detecting presence both when accessing the complainant's house and when passing by the public road next to the respondent's house.

SECOND: The respondent provides a signed responsible declaration indicating that the camera is fictitious, does not work, or has been removed. He provides an advertisement for a fictitious camera claiming that it is similar to his camera. He submitted a written statement in which he stated that: "AS COMMUNICATED THROUGH THE RESPONSIBLE DECLARATION DATED 06/06/2022, THE CAMERA INSTALLED ON THE WALL OF THE SOUTH-FACING TERRACE OF THE HOUSE LOCATED AT ***ADDRESS.1 IS FICTITIOUS." In the allegations to the proposed resolution, he indicates: "I COMMUNICATE AND CLARIFY THAT: AS OF JULY 2022 AND THROUGH A RESPONSIBLE DECLARATION ON THE AEPD WEBSITE, A RESPONSE OF RECTIFICATION WAS GIVEN THAT THE CAMERA HAD BEEN REMOVED (OPTION OF THE THREE INDICATED IN SAID WRITING) AND IN SUBSEQUENT NOTIFICATIONS RECEIVED, IT WAS AGAIN COMMUNICATED THAT THE CAMERA CURRENTLY INSTALLED IS FICTITIOUS AND DISSUASIVE AND DOES NOT ALLOW VISUALIZATION OR RECORDING OF IMAGES."

THIRD: The appellant submitted a recourse for reconsideration on April 23, 2023, to this Spanish Agency for Data Protection, basing it fundamentally on: "AS COMMUNICATED THROUGH THE RESPONSIBLE DECLARATION DATED 11/07/2022, THE CAMERA LOCATED ON THE WALL OF THE SOUTH-FACING TERRACE OF THE HOUSE AT ***ADDRESS.1 IS FICTITIOUS AND DISSUASIVE AND DOES NOT ALLOW VISUALIZATION OR RECORDING OF IMAGES, AS WAS REITERATED ON 06/09/2022, TO WHICH IMAGES AND VIDEO RELATING TO SAID EQUIPMENT ARE ATTACHED, WHICH DO NOT COINCIDE OR IDENTIFY WITH THOSE SHOWN BY THE COMPLAINANT IN THE VIDEOS PROVIDED, THE VERACITY OF WHICH IS OBSOLETE.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common

Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, and again contradicting the aforementioned allegations, it should be noted that all of them were already analyzed and dismissed in Legal Ground II of the contested Resolution, as transcribed below: "Examined the allegations of the respondent, these allegations are not accepted, as they do not specify in the responsible declaration referred to that the... 3/4

the camera is fictitious. The date on which it claims that said declaration was submitted does not match the date in the Registry of this Agency.

Along with the claim, two videos are submitted in which the alarm is heard activating when there is movement, a circumstance incompatible with a fictitious camera.

After requesting clarification from the responding party, to explain the reason for the alarm activation (linked to a fictitious camera), no explanation is provided in their response; they only submit an advertisement for a fictitious camera claiming it is similar to their camera. When comparing the images of both devices, no similarity is observed.

Finally, there is a contradiction that can be verified in the literalness of their allegations, when they first state that in June 2022 they had said that the camera was fictitious, and in the allegations to the proposal, they state that in July 2022 the camera had been removed. Both references pertain to the only responsible declaration (signed on July 6, 2022, and registered with this Agency on July 11, 2022) in which it does not specify whether the camera is fictitious, not functioning, or has been removed.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Mr. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on March 14, 2023, in file EXP202206258.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES93 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision

of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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